

5.3 Report inwards (other than private aircraft)

5.3.1 Reports inwards

Union traffic

A formal report is not required for aircraft from other Member States carrying only Union goods on arrival in Ireland. However, where a combined presentation notification and temporary storage declaration has been submitted it may be used for National Prohibitions and Restrictions control purposes. In addition, spot checks should be carried out on arrival of the aircraft.

Mixed traffic

Where an aircraft on arrival from another Member State is carrying both Union and non-Union goods, a formal report must be made (but the report takes the form of a combined presentation notification and temporary storage declaration). The report must identify all third country goods whether by way of a separate cargo manifest or otherwise and is to be used for prohibition and restriction controls as well as ensuring control of the non-Union goods. Full provisions for the reporting requirements of aircraft are found in Section 11 of the Customs Act 2015, the Customs (Reports Inwards and Outwards by Aircraft) Regulations 2016 (S.I. No.613 of 2016), the Customs (Electronic Filing of Returns) Order 2016 (S.I.No.614 of 2016) and the Customs (Mandatory Electronic Filing) (Specified Persons) Regulations 2016 (S.I.No.615 of 2016).

5.4 Intra-Community private aircraft carrying passengers and/or Union goods only

5.4.1 Arrivals at International Union Airports

Under EU rules, all flights arriving from areas outside the fiscal territory of the EU must land at an international Union airport (i.e. Dublin, Cork or Shannon), unless otherwise specifically authorised by Revenue. Where such authorisation is given, prior notice and the maintenance of records will be required.

Where a private aircraft lands at an international Union airport (i.e. Dublin, Cork or Shannon), the pilot-in-command is required to inform Customs on arrival and lodge a combined presentation notification and temporary storage declaration of any third country goods carried. This requirement may be dispensed with where the Assistant Principal is satisfied that sufficient flight information is maintained by the airport authorities or other independent sources, e.g. air traffic control or handling agents and is available for Customs inspection.³

³ S11(3) Customs Act 2015